

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND
THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2025-4802 & 2025-4804

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE LICENSE TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF SCOTT WILLIAM KIETZER, LICENSE NO. LPC.19304, LICENSE NO. ACD.2184,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners and the State Board of Addiction Counselor Examiners (together, "Boards") and Scott William Kietzer ("Respondent"), as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Licensed Professional Counselor ("LPC") and licensed to practice as a Licensed Addiction Counselor ("LAC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case numbers 2025-4802 and 2025-4804. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Failed to act within the limitations created by a behavioral, mental health, and substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.
5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Boards find that Respondent violated section(s) 12-245-224(1)(f)(II), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article

245 if he or she:

- (f)(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care; or

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe are necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice as an LPC and license to practice as a LAC in the State of Colorado are hereby placed on probation for three (3) years. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and the period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that Respondent has satisfied all terms and conditions of probation.

10. If, after twenty-four (24) months of probation, Respondent has adhered to all terms and conditions of this Order, and in the event that PAS agrees, Respondent may request termination of probation and PAS. Request for termination must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that he has satisfied the terms and conditions of probation and PAS. It is at the Boards' discretion whether or not to approve Respondent's request to terminate probation and the PAS requirement.

PEER ASSISTANCE SERVICES ("PAS")

11. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete a contract with PAS for a minimum period of three (3) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

12. Respondent shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order ("PAS Contract"). Respondent agrees to cease the

practice of addiction counseling and professional counseling after fourteen (14) days until such time as Respondent enters into his PAS Contract.

a. Therapy monitoring. As a requirement of his PAS Contract, Respondent shall undergo individual therapy with an approved mental health provider, at a frequency and duration to be determined by PAS, as specified in the PAS Contract signed by Respondent. Respondent may utilize his current therapist.

b. Urine/Blood Screens. If required as a term of his PAS contract, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Boards, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

c. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Respondent.

d. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Boards upon its request. Respondent shall keep all releases current and in effect.

e. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Boards by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Boards of completion of treatment.

f. Withdrawal from Program. Respondent must immediately notify the Boards in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

TERMS AND CONDITIONS

13. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure not to engage in any activities that are prohibited and that all practice is in accordance with the generally accepted standards of practice.

14. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

15. All expenses incurred or associated with the practice evaluation, practice monitoring, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

16. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

17. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-245-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

18. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

19. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

20. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-245-224, C.R.S.

21. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

22. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

23. This Order shall become effective upon (a) mailing by first-class mail to

provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

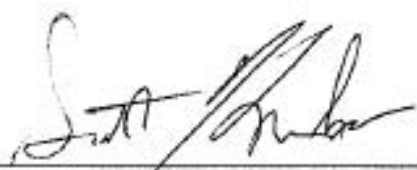
24. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

25. This Order shall be admissible as evidence at any hearing held before the Boards.

26. This Order shall be a public record in the custody of the Boards.

ACCEPTED AND AGREED BY:

RESPONDENT



SCOTT WILLIAM KIETZER
LICENSE No. LPC.19304
LICENSE No. ACD.2184

APPROVED AS TO FORM
FOR RESPONDENT



ATTORNEY NAME
Attorney Firm

ACCEPTED AND ORDERED BY:

STATE BOARD OF PROFESSIONAL
COUNSELOR EXAMINERS AND STATE BOARD
OF CERTIFIED ADDICTION COUNSELOR
EXAMINERS

REINA SBARBARO-GORDON
Program Director

Effective this 23rd day of December,
2025.